

purchase of *land*, to be settled to uses which either wholly or partially fail to take effect, the undisposed of interest in the money, or estate if purchased, will result to the [testator's *next of kin* (*f*); and will belong to them as realty or personalty, according to its nature in the view of a Court of equity at the time it results (*g*).]

The old authorities (*h*) upon the subject are somewhat conflicting; but it will be superfluous to enter upon a particular examination of them, as the case of *Cogan v. Stephens* (*i*), before Lord Cottenham, while at the Rolls, finally decided the point in favour of the next of kin.

[*153] * *Thirdly. Appointed' fund results to the donee of the power.*—“Where” (to use the words of Lord St. Leonards) “there is a power to appoint a settled fund, the execution of the power takes the part appointed entirely out of the settlement. Although, therefore, the beneficial interest in the fund is not in terms expressly disposed of, yet there can be no resulting trust for the benefit of any person under the *deed creating the power*, for when the fund is appointed it must be considered as if it had never been comprised in the trust, because it is absolutely taken out of it by the execution of the power” (*a*). If, therefore, a *feme covert* has in certain events which occur a power to appoint a settled fund by will, and she appoints executors and directs them to apply the fund in payment of legacies which do not exhaust it, [or fail,] the executors hold the surplus in trust, not for the persons entitled under the settlement in default of appointment, but as part of the personal estate of the donee of the power (*b*). [And there is no distinction in this respect

(*f*) *Cogan v. Stephens*, 5 L. J. N. S. Ch. 17; *Hereford v. Ravenhill*, 1 Beav. 481; [*Curteis v. Wormald*, 10 Ch. D. 172; but see] *Reynolds v. Godlee*, Johns. 530, see 583.

(*g*) *Curteis v. Wormald*, 10 Ch. D. 172.]

(*h*) *Fletcher v. Chapman*, 3 B. P. C. 1; *Hayford v. Benlows*, Amb. 582; *Leslie v. Duke of Devonshire*, 2 B. C. C. 187; *Browne v. De Laet*, 4 B. C.

C. 534; *Tregonville v. Sydenham*, 3 Dow, 207; *Abbot v. Lee*, 2 Vern. 284; S. C. Append. No. ii. to 3d Edition; *Mogg v. Hodges*, 2 Ves. 52.

(*i*) Append. No. iii. to 3d Edition; S. C. 5 L. J. N. S. Ch. 17. As to the principle, see the author's argument in favour of the next of kin in the early editions.

(*a*) *Treat. of Powers*, 8th Ed. p. 467.

(*b*) *Brickenden v. Williams*, 7 L. R.